

Rescuing justice and stability

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Abstract

Though John Rawls's treatment of stability has received less attention than other parts of his work, it promises help in understanding how liberal institutions can reproduce themselves under non-ideal conditions like ours. But stability in Rawls's sense seems to depend ineliminably on society's justice, and Gerald Cohen powerfully criticized the connection Rawls drew between the two. Cohen contends that stability is 'alien' to justice rather than conceptually connected to it. It is therefore a consideration that should be studied separately. If we are to draw on Rawls's treatment, it needs to be defended against Cohen's critique. I argue that it can be. The defense depends upon establishing a conclusion that Cohen thought inconsistent with Rawls's theory and that might have discomfited Rawls himself: that the arguments he offered for the stability of a just society were more limited and tentative than he acknowledged. Locating those limits has two valuable payoffs. It sheds light on some of the more obscure and difficult, but neglected parts of Rawls's work. More important for our current political moment, it shows the points at which unjust societies such as our own need to be shored up.

Keywords

John Rawls, Gerald Cohen, justice, stability, rescuing justice and equality

In 1989, western history was said to have ended with the triumph of liberal democracy.¹ Not thirty-five years later, liberal democratic institutions are at their most fragile in most people's living memory. Those who believe that liberal democracies hold out the best hope of free, prosperous and satisfying lives take their stability to be of obvious importance. Much of John Rawls's work on justice was devoted to the question of whether just institutions would be stably so. Many of the concepts he used to study stability

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promise some help in understanding the conditions under which liberal democratic institutions can reproduce themselves even under non-ideal conditions such as our own.

But the recovery and deployment of Rawls's treatment faces formidable obstacles. Rawls's analysis of stability is of a piece with his ideal theory: the stability he analyses is the stability of an ideally just society. Indeed, stability in Rawls's sense seems to depend *ineliminably* on society's justice. The connection Rawls drew between stability and justice has been subjected to a powerful line of criticism by Gerald Cohen. For Cohen contends that stability is a consideration that is 'alien' to justice (Cohen 2008, 284) rather than, as he believes Rawls thinks, one that is conceptually connected to it. It is therefore a consideration that should be studied separately. Its separate treatment, however, seems to be something that Rawls's theory precludes.

Moreover, in his late work Rawls himself seemed to acknowledge that the conception of justice he defended in *A Theory of Justice* would not be stable. He conceded that an overlapping consensus is more likely to be on a family of liberal political conceptions than on justice as fairness (Rawls 1995). Some have argued that carried to its logical conclusion, Rawls's acknowledgment implies either that some new conception of stability is called for (Thrasher and Vallier 2018) or that the idea of stability be abandoned altogether (Schaefer 2023). If these philosophers are right about the implication of Rawls's acknowledgment, and if Cohen is right that Rawls thought justice and stability are conceptually connected, then Rawls's late acknowledgment does not just require a shift in stability. It means a shift in justice too.

If we are to make use of Rawls's treatment of stability, these criticisms of it must be answered. I have argued elsewhere against giving up on the search for stability. (Weithman 2023a) Here I defend Rawls against Cohen's critique, which I take to be the most powerful of these criticisms, but which has not been addressed, let alone answered, in the considerable literature Cohen's work on Rawls elicited. The defense depends upon establishing a conclusion that is likely to surprise even careful readers of Rawls and that might have discomfited Rawls himself: that the arguments he offered for the stability of a just society were more limited and tentative than he acknowledged. Locating those limits requires more exposition than might be expected, but has two valuable payoffs. It sheds light on some of the more obscure and difficult, but neglected parts of Rawls's work. More important for our current political moment, it shows the points at which unjust societies such as our own need to be shored up.

The defense of Rawls provided here draws on *A Theory of Justice* rather than on Rawls's later writings. This may be thought a mistake, since the later Rawls recast his earlier treatment of stability so profoundly. One reason for drawing on *A Theory of Justice* is that the Rawls of *Theory* rather than the Rawls of *Political Liberalism* is the target of Cohen's critique. Another is that concepts and connections which are crucial to Rawls's accounts of stability both early and late – especially the connection between stability and equilibrium – are more clearly laid out in *Theory* than in *Political Liberalism*, where they are presupposed. Finally, for all the importance of Rawls's turn to political liberalism, there is nothing to be gained for present purposes by looking at Rawls's later work. As we shall see in §7, whether a just society would be in a stable equilibrium state, and so would be stable in Rawls's sense, depends upon a fit between the demands of justice and each

citizen's good. It is because that fit is not guaranteed that Cohen's critique can be rebutted. In *Political Liberalism*, the fit between justice and goodness is achieved by overlapping consensus. But that fit is no more guaranteed by an overlapping consensus than on Rawls's earlier account, and for much the same reasons. For the Rawls of *Political Liberalism* as for the Rawls of *Theory*, a society that is just may not be stably so.

§1. G.A. Cohen's critique

Early in *A Theory of Justice*, Rawls says that 'scheme[s] of social cooperation' – by which he means "just scheme[s] of social cooperation" – 'must be stable' (Rawls 1999a, 6). Rawls then sets up the original position so that stability is among the considerations parties take into account when choosing principles. He thus asserts a strong connection between stability and justice: he thinks considerations of stability bear on what justice demands, and he builds his theory of justice to suit.

Gerald Cohen argues that the assertion of that connection is a mistake. He says that since Rawls set up the original position so that 'well-formed contractors must seek stability' in principles of justice, 'Rawlsians, who believe that justice is what well-formed contractors choose, must claim that stability is a requirement that justice satisfies' (Cohen 2008, 327). And so he thinks Rawlsians must accept:

(JS) Principles of justice are correct only if they are stable.

(JS) seems to follow from the claim I said Rawls makes early in *Theory*, and so Cohen would seem to be right in thinking Rawls is committed to it. Cohen musters several arguments against (JS) and so against the connection he takes Rawls to assert. To see how those arguments go, we need to see what Cohen takes 'stable' and its cognates to mean.

Cohen distinguishes two kinds of stability: 'plain, ordinary stability' and 'Rawlsian stability'. The former 'is the propensity of a thing, for whatever reason, to last' (Cohen 2008, 327). When the principles are stable in this sense, they 'have a tendency to last' – that is, to be lastingly satisfied – once instituted (Cohen 2008, 327). Rawlsian stability is the tendency of principles, once instituted, to be lastingly satisfied for a specific reason: because institutions which comply with them encourage a sense of justice in those who live under them (Cohen 2008, 329). Because Rawlsian stability entails ordinary stability, showing that (JS) is false when it refers to ordinary stability is enough to show that the version of (JS) which refers to Rawlsian stability is false as well.

Cohen offers arguments against the weaker version of (JS). The first three are brief reductions, according to which

- (1) (JS) is inconsistent with saying such entirely intelligible things as 'This society is at the moment just, but it is likely to lose that feature very soon: justice is such a fragile achievement'; or 'We don't want our society to be just only for the time being: we want justice to last'.
- (2) (JS) is inconsistent with our being able to say that the best rules of justice might not be the most stable. But, Cohen observes, that is something it clearly makes sense to say.

and

- (3) The hope that justice will last 'is inexpressible' if (JS) is true because according to (JS), 'it is true by definition that there is no danger justice won't last'. 'And that', Cohen says, 'is absurd' (Cohen 2008, 328).

The last argument alleges that (JS) is inconsistent with something Rawls himself says:

- (4) If (JS) is true, then Rawls contradicts himself when he says that 'a just scheme of cooperation may not be in equilibrium, much less stable' (Cohen 2008, 328 note 1).

Cohen also thinks that (JS) helps to facilitate Rawls's elision of principles of justice with rules for the regulation of social life. These are rules whose content must, Cohen says, reflect values other than justice, because the regulation of social life requires balancing justice and other considerations. Cohen objects that Rawls mistakes rules for principles because of what parties in the original position take into account when they choose what Rawls claims are fundamental principles of justice. For what Rawls allows through the veil of ignorance 'makes fundamental justice sensitive to facts and to non-justice values to which, in truth, it is immune' (Cohen 2008, 377). Summing up his argument against (JS) and the elision it facilitates, Cohen says 'It seems to me evident both that selectors of rules of regulation must have regard to stability and that just principles might be ... fragile: accordingly, justice is not what selectors select' (Cohen 2008, 330).

Cohen's best-known criticism of Rawls appeals to his distinction between fact-sensitive and fact-insensitive principles. Since Rawls's principles of justice are grounded on facts about stability, we might have expected Cohen to criticize Rawls's endorsement of (JS) on the ground that it undermines the *fundamentality* of his principles of justice. The criticisms that I have rehearsed in this section are instead meant to show that Rawls's principles are not principles of *justice* but rules of regulation. Thinking these arguments are decisive against the connection he takes Rawls to draw between stability and justice (Cohen 2008, 344 note 3), Cohen does not argue that Rawls's principles are not fundamental in virtue of their dependence on stability. Nor does he appeal to the distinction between fact-sensitive and -insensitive principles to which that argument would have to appeal.

Because the objections that I have canvassed here do not depend upon the critique of Cohen's which is best known, it would be easy to overlook their importance. But the objections are motivated by an intuition that many, myself included, find extremely compelling. Crudely put, that intuition is that the principles of morality, including the demands of justice, are one thing and how humans generally behave, even in the best of circumstances, is quite another. The independence of justice from the general run of human conduct is what enables justice to serve as a standard against which the ways we conduct ourselves – even at our best – can be measured and found wanting. It is also what makes it possible to say, with a strand of western thought that runs from the

Pauline epistles to Kant, that knowledge of the moral law is what makes us aware that perfect justice lies beyond us. Conversely, if what justice asks of us is constrained by the way we behave under realistically ideal conditions – if, for example, the principles of justice are constructed, and are such that human beings generally satisfy them in those conditions by construction – then the independence of justice has been lost, and with it the thought that justice is a standard. This might seem to be precisely what Rawls has done by requiring his agents of construction to take stability into account in choosing principles of justice. If so, then his constructivism exacts a very high cost, one we might be reluctant to pay.

Of course, Rawls does not say that we will always be just rather than unjust, or that justice is what our unschooled inclinations incline us toward. On the interpretation I shall develop, Rawls *does* think that of the possible principles of justice, the correct ones are the ones that we are most likely to comply with, other things equal. But we are not most likely to comply with them because they fit our antecedently given desires or inclinations. Rather, we are most likely to comply with them because the institutionalization of their demands will make us into people who comply with them. Thus the demands are not constructed to accommodate us. Rather, if all goes well under favorable circumstances, we are (re)constructed to meet the demands. But as we shall see, that all will go well is hardly a foregone conclusion.

In the next section, I show that Cohen's objections misfire in their original form because, appearances to the contrary notwithstanding, they do not target a claim Rawls makes. I then reformulate those objections so as to bring out what I take to be Cohen's fundamental challenge to Rawls's appeal to stability. In the remainder of the article, I develop an interpretation of Rawls that shows how he can respond to that challenge.

§2. The fundamental challenge

We have seen that Cohen criticizes Rawls on the grounds that his commitment to:

(JS) Principles of justice are correct only if they are stable.

is inconsistent with claims that it clearly makes sense to express and with a claim Rawls does express.

Though I followed Cohen in listing four claims with which (JS) is said to be inconsistent, all four of his reductions depend upon the same inconsistency: an inconsistency between (JS) and

(◇JS) It is possible that the correct principles of justice are not stable.

Thus the first inconsistency Cohen alleges is between (JS) and the coherence of saying 'society is just at the moment, but its justice may not last'. Because of what Cohen means by 'stable', he must equate (JS) with the claim that 'correct principles of justice would last if instituted'. This version of (JS) is not inconsistent with 'society is just at the moment, but its justice may not last'. But it *is* inconsistent with a clear implication of the latter: 'the

correct principles of justice have been instituted but it is possible that they will not last'. Since Cohen thinks stability is the propensity to last if instituted, the latter is equivalent to ($\Diamond$ JNS). The first inconsistency Cohen alleges therefore arises from the inconsistency of (JS) and ($\Diamond$ JNS).

Cohen says that (JS) is inconsistent with our being able to say something it makes sense to say: that the best rules of justice might not be the most stable. If we take the best rules to be the correct rules, then what Cohen says it makes sense to say just is ($\Diamond$ JNS). So the second problem Cohen alleges just is the inconsistency of (JS) and ($\Diamond$ JNS).

The third problem Cohen alleges is that (JS) renders the hope that justice will last inexpressible. One cannot hope for a certainty. Rather, hope requires that its object be possible but not inevitable. The hope that justice will last therefore requires that its stability not be inevitable. It requires the possibility that justice will *not* last. And so for reasons we have already seen, the expressibility of the hope requires ($\Diamond$ JNS). It is (JS) that precludes ($\Diamond$ JNS). So the inconsistency of (JS) and ($\Diamond$ JNS) is what really renders the hope inexpressible.

The fourth of Cohen's objections is that by endorsing (JS), Rawls denies himself the conceptual resources to express a claim he explicitly makes: 'a just scheme of cooperation may not be in equilibrium, much less stable' (Rawls 1999a, 435). This claim implies the possibility that the correct principles of justice have been instituted but may not last. Again for reasons we have already seen, it implies ($\Diamond$ JNS). Thus the reason endorsement of (JS) leaves Rawls unable to say what he says is that (JS) is inconsistent with ($\Diamond$ JNS).

But if all four of Cohen's objections to (JS) depend upon its inconsistency with ($\Diamond$ JNS), then there is a problem with those objections. Stability as Cohen understands it is a dispositional property: it is the propensity of principles to last once instituted. Dispositional properties are manifest under certain conditions typically referred to as 'stimulus conditions'. But because the full range of a disposition's stimulus conditions may not obtain, or because something can have a disposition whose manifestation is blocked even in the presence of its stimulus conditions, it is possible for something to have a disposition without the disposition's being manifest. That means that, though Cohen's objections depend upon the possibility that principles of justice can be instituted without lasting, that possibility does not establish ($\Diamond$ JNS). All it establishes is:

($\Diamond$ JNM) It is possible that the stability of the correct principles of justice is not manifest.

The problem with Cohen's objection is that ($\Diamond$ JNM) is consistent with (JS). To see how their consistency undermines Cohen's objections, consider objection (3). Describing something as durable is consistent with saying that we hope it does not break if what we have in mind is that the conditions of its being resistant to breakage do not obtain. Similarly, we can say of principles of justice that they have the propensity to last if institutionalized while allowing that they might not last because the conditions in which they are institutionalized prevent or are not conducive to the propensity's manifestation.

Cohen may respond that we can say something is durable while saying we hope that it does not break *if* the conditions in which we imagine that it might break are unusual or non-standard. But, he may continue, it would be odd to describe as durable something which is fragile under conditions that are not unusual. Ascriptions of durability assert that an object has the propensity to resist breakage and that conditions for manifesting that propensity normally obtain. The same, he may say, is true of the stability of principles of justice. To say that the correct principles are stable is really to say that the correct principles have the propensity to last and that the stimulus conditions for manifesting the propensity normally obtain in the societies in which the principles are instituted.

Call the conditions that normally obtain when principles are instituted ‘their normally instituted conditions’. Then according to the response I imagine Cohen making, the right way to understand (JS) is

(JS)’ Principles of justice are correct only if their stability is manifest under their normally instituted conditions.

What ($\Diamond$ JNM) should be understood to assert, and what Cohen really means by ($\Diamond$ JNS), is

($\Diamond$ JNM) It is possible that the stability of the correct principles of justice is not manifest under their normally instituted conditions.

(JS) and ($\Diamond$ JNM), when thus spelled out, *are* inconsistent. But though Rawls seems to accept (JS), there is a problem with taking it to be his considered view rather than as – what I believe it to be – a propaedeutic.

The problem is that (JS) does not reflect the fact that reasoning in the original position is comparative. While ascriptions of stability may entail manifestation under standard conditions, ascriptions of relative stability do not. And so instead of inferring (JS) from the way parties reason in the original position, Cohen should infer that Rawlsians are committed to:

(JS)’ Principles of justice are correct only if they more likely to manifest their stability under their normally instituted conditions than the alternatives are to manifest theirs.

One difficulty with (JS)’ is that when arguing that his principles would be chosen in the original position, Rawls implies that stability is a desideratum rather than a requirement.² This leaves open the possibility that the principles most likely to manifest their stability would be passed over by the parties in favor of principles that satisfy either some other, weightier desideratum or some other desiderata that are more weighty in combination. Greatest likelihood of manifestation could be a requirement only if stability is the weightiest of the desiderata or if the other desiderata of Rawls’s principles and their competitors balance out so that other things are equal and stability is a tie-breaker. I shall grant Cohen that one of these conditions is satisfied, and that Rawlsians do indeed accept (JS)’.³

The real difficulty for Cohen is that (JS)' – unlike (JS) – is not inconsistent with ($\Diamond$ JNM). At this point, I believe Cohen could best salvage his objections by posing a dilemma. ($\Diamond$ JNM) is either false or true. If it is false, then Rawls does not seem to be able to say what Cohen says he cannot say. If ($\Diamond$ JNM) is true, then we need to know why it is true even of the most stable principles of justice and hence the ones that satisfy the condition imposed by (JS)'. This leads to what I take to be Cohen's fundamental challenge. If Rawls thinks that ($\Diamond$ JNM) is true even of the most stable principles, why does he think that stability or relative stability is a condition the correct principles of justice must satisfy? ($\Diamond$ JNM) may not be inconsistent with (JS)', but in the absence of a compelling reason for endorsing (JS)', stability may well seem to be – as a Cohen says – 'alien' to justice (Cohen 2008, 284).

§3. 'Advance the good of its members'

The first step in the Rawlsian response to Cohen's dilemma is a claim Rawls makes early in *Theory*: 'society is a cooperative venture for mutual advantage' (Rawls 1999a, 4). This claim is not a definition, since Rawls clearly thinks there can be societies which do not work for mutual advantage (see Rawls 1999a, 68). Rather, his claim expresses a highly abstract norm, a norm according to which society *should be* mutually advantageous. Call this *the norm of mutual benefit*.

That norm can sound like a platitude, but it is not. It does real philosophical work. For Rawls alleges early in *Theory* that a society whose basic structure complies with the principle of utility would be inconsistent with 'the conception of social cooperation among equals for mutual advantage' (Rawls 1999a, 13). Neither Rawls's conception of mutual advantage nor his argument against utilitarianism is well enough developed by this point in *Theory* for the allegation to tell decisively against the principle of utility. But the allegation is meant to plant two ideas in readers' minds that will come to fruition later: (i) that the principle of utility is defective as a principle of distributive justice and (ii) that it is defective *because* implementing it would be inconsistent with society's operating for mutual advantage.

These two ideas are important for present purposes and I will return to them shortly. But since readers who grant that the norm of mutual benefit does some work against utilitarianism may wonder why they should accept that norm, it is important to see what Rawls's answer would be. Let us begin with the idea of mutual benefit.

A mutually beneficial scheme of cooperation is one from which each of the cooperators benefits, relative to an appropriate benchmark. That benchmark may be a state of nature, as in traditional social contract theory, or it may be a scheme that benefits some at the expense of others. What matters is that a mutually advantageous system of cooperation is one from which each benefits relative to the benchmark chosen. It is, as Rawls says when he introduces the norm of mutual advantage, 'a system of cooperation designed to advance the good of those taking part in it' (Rawls 1999a, 4).

If asked why we should accept the norm of mutual advantage – why political society should be a system designed this way – Rawls would, I think, point to the demands that life in political society makes: in a variety of ways it restricts the ways in which citizens

can pursue their aims. Those demands must be justifiable to each person on whom they are imposed. They are justified only if general compliance with the demands makes each better off than she would be in the state of affairs that serves as the benchmark. Hence the norm of mutual advantage.

That norm has an implication which will prove crucial for the Rawlsian response to Cohen. For grant Rawls the primacy of the basic structure and his conception of the primary goods. Then if the rules for the basic structure's distribution of primary goods are justified, they must be such that everyone's good is advanced when those rules are satisfied. If some candidate set of rules was not the most effective at advancing everyone's good – if some other set would do better – then there is not sufficient reason to order the basic structure by the less effective set. In that case that set, and its distribution of demands, is unjustified. Rawls takes candidate rules for the basic structure's distributive operations as candidate principles of justice. So the norm of mutual advantage imposes a condition on those principles:

(JAG) Principles of justice are correct only if they are the ones that would most effectively advance each citizen's good.

There are textual grounds for thinking that Rawls endorses (JAG), though I shall not make the exegetical argument here. There are also philosophical reasons for thinking he accepts it.

At the heart of the social contract tradition are the thoughts that political society is an artifact which its members make to serve a function, that that function can be ascertained by asking why those who take part in it would agree to do so, and that basic political arrangements are acceptable only if they serve that function. Because Rawls locates his theory in the social contract tradition, we should not be surprised that he endorses these ideas in some form. An indication that he accepts them is that says advancing the good of members is what political society is 'designed' to do. But because Rawls's theory carries the social contract tradition to 'a higher level of abstraction' (Rawls 1999a, 3), we should also not be surprised to find that he modifies them considerably.

Because the object of agreement in Rawls's social contract are principles of justice and not a constitutional form, it is principles of justice and not constitutions whose justifiability depends upon their serving the purpose of political society once ascertained. According to Rawls, political society is, as I have said, to advance the good of its members. But in Rawls's theory, their good – and hence what political society is designed to advance – is not identified by asking why contracting parties would exit a state of nature, since as we shall see momentarily, the original position makes a different benchmark available.

It may be thought that citizens' good is given by the contractors' desire for primary goods, a desire with which they are endowed by stipulation. But this is at best a partial truth, since it suggests that their good is given prior to and independent of what the contracting parties choose. The fuller truth is given by the account of the good Rawls develops in Part III of *Theory*, an account which explains but is not exhausted by the goodness of the primary goods. That account helps to spell out (JAG). According to that

account, each citizen's good is given by a plan of life that she develops using the counting principles and the principles of deliberative rationality, and that satisfies Aristotelian Principle (Rawls 1999a, 366 and 379). What (JAG) says is that the correct principles of justice are the ones that would most effectively advance each citizen's good understood as a plan of life so formulated.

Of course, using (JAG) to identify the correct principles requires specification both of the baseline against which advances are to be measured and of some measure of effectiveness. Because Rawls's contracting parties are veiled in ignorance, Rawls thinks they would initially agree to distribute primary goods equally. It is '[t]his state of affairs', he says, that 'provides a benchmark for judging improvements' (Rawls 1999a, 55, emphasis added). Principles effectively advance the good of each, and so are justifiable, only if they make everyone better off than she would be at that baseline. And Rawls thinks principles which allow for departures from equality most effectively advance the good of each when they do as much as possible for those who benefit least from the inequality the principles permit. But because my concern here is not with which principles are correct, but with the connection Rawls asserts between correctness and stability, these substantive commitments of his will not play a role in my argument, and I mention them only to leave them aside.

I said that the first step in the Rawlsian response to Cohen is Rawls's claim that society is a cooperative venture for mutual advantage. We have now seen how Rawls would move from that claim to (JAG), and how he would begin to elucidate (JAG) using his account of goodness as rationality. To see the next steps of the Rawlsian response, we need to look into Rawls's treatment of stability.

§4. Stability and equilibrium

I said that stability is a dispositional property of principles of justice. But what is it a disposition to do?

Sometimes Rawls just seems to mean that principles' stability is their disposition to endure if institutionalized or, as Cohen says, 'to last'. When principles of justice are stable in this sense, a basic structure which satisfies them 'remain[s] just or approximately so' (Rawls 1999a, 401). Its 'arrangements are [then] stable with respect to the society's public conception of justice' (Rawls 1999a, 382). But as Cohen observes, Rawls sometimes uses 'stable' to mean something stronger than 'enduring' or 'lasting'. Rawls thinks that principles of justice are stable in the stronger sense just in case they are 'such that when they are embodied in the basic structure of society men tend to acquire the corresponding sense of justice and develop a desire to act in accordance with [them]' (Rawls 1999a, 119).

Rawls gives much greater attention to the latter, stronger kind of stability and of the two, it is the one that is the more important in his theory. The connection between the two kinds of stability, and the stimulus conditions of the latter, can be seen by seeing what Rawls says about equilibrium and stability. The kind of equilibrium that is most prominent in the Rawlsian corpus, and that has received the greatest scholarly attention, is reflective equilibrium of considered judgments. But I shall leave this kind of equilibrium aside. As

we shall see, the Rawls of *Theory* works with two other kinds of equilibrium as well: the equilibrium of institutions in a well-ordered society and the equilibrium of just citizens' plans.

According to Rawls, equilibrium and stability are technical notions that apply to 'systems'. A system is in equilibrium, Rawls says, 'when it has reached a state that persists indefinitely over time so long as no external forces impinge upon it' (Rawls 1999a, 400). A sufficient condition for a system to be in an equilibrium state is therefore that it endures in the absence of perturbations from the outside, regardless of why it endures. 'The relevant systems here', Rawls says, 'are the basic structures of the well-ordered societies corresponding to the different conceptions of justice' (Rawls 1999a, 400). If a society's basic institutions remain well-ordered by principles over time – if they enduringly satisfy the principles, no matter why – they are in equilibrium. But 'all social systems', Rawls continues, 'are subject to disturbances of some kind', so any equilibrium state is liable to be upset. Systems

are practically stable ... if the departures from their preferred equilibrium positions caused by normal disturbances elicit forces sufficiently strong to restore these equilibria after a decent length of time, or else to stay sufficiently close to them. (Rawls 1999a, 400).

And so a basic structure's satisfaction of principles is a stable equilibrium state if it enduringly satisfies those principles because there are forces 'within the system' which cause the enduring satisfaction (Rawls 1999a, 400). The forces Rawls has in mind are the moral attitudes of citizens.

Suppose we understand 'equilibrium' and 'stable' as suggested in the previous paragraphs, and take 'stable' and its cognates to apply to equilibria in the first instance. We can then use the stability of equilibria to explicate the stability of principles of justice. The passages in which Rawls implies that principles of justice are stable just in case they would be enduringly satisfied if institutionalized can be read as saying that a society which enduringly satisfies those principles is in equilibrium on them. When the principles of justice are disposed to 'generate[] [their] own supportive moral attitudes', then the equilibrium is stable. The passages in which Rawls says that principles of justice are stable when they generate those attitudes can then be read as pieces of shorthand. They can be read shorthand for the claim that principles of justice are stable just in case they are disposed to maintain the basic structure in an equilibrium on themselves – an equilibrium that is stabilized by the supportive attitudes that the principles themselves would generate.

§5. The conditions of manifest stability

What conditions activate the disposition so that it is manifest?

One, of course, is institutionalization. Other conditions can be brought to light by looking more closely at the supportive attitudes and how the argument for justice as fairness appeals to them.

Prominent among the forces that stabilizes an equilibrium is citizens' sense of justice. Rawls devotes considerable attention to its development in the well-ordered society of justice as fairness. According to the psychological laws on which Rawls's account is premised, the development of the sense of justice depends upon citizens' tendency to reciprocity (Rawls 1999a, 429–30). As members of a society well-ordered by justice as fairness mature and learn about their institutions, they come to appreciate that they benefit from just arrangements and acquire a desire to support them. Their inclination to support their arrangements helps to maintain the basic structure in equilibrium on justice as fairness.

Because the development of that attitude depends upon the tendency to return good for good, the stability of justice as fairness depends upon the fact that institutions which satisfy it advance each citizen's good. Rawls also argues that the supportive attitudes in a society well-ordered by the principle of utility 'are likely to vary widely between one sector of society and another. Some groups may acquire little if any desire to act justly (now defined by the utilitarian principle)' (Rawls 1999a, 437). The reason some groups may acquire little desire to act justly is that citizens with true beliefs about their society know that institutions which satisfy the principle of utility require some to sacrifice for the benefit of others. Rawls's treatment of how justice as fairness and utilitarianism would encourage a sense of justice if institutionalized suggests that he thinks there is a relationship between the principle's manifest stability and its advancement of the good of each:

(SAG) If principles of justice are more likely to manifest their stability under their normally instituted conditions than the alternatives are to manifest theirs, then they would most effectively advance each citizen's good.

If Rawls is correct in thinking that utilitarianism is the strongest competitor to justice as fairness, then (SAG) – and the differing strengths in the supportive attitudes generated by justice as fairness and utilitarianism – provide some evidence that Rawls's principles are the ones that most effectively advances each citizen's good. This conclusion – if sound – together with Rawls's claim that

(JAG) Principles of justice are correct only if they are the ones that would most effectively advance each citizen's good.

provides some evidence that Rawls's principles satisfy a condition on the correct principles of justice.

This argument for Rawls's principles shows that stability, as a dispositional property of principles of justice, has two stimulus conditions in addition to institutionalization. The psychological laws of reciprocity must be true of society's members and society's members must have plans of life which they take to be advanced by the principles. But showing that Rawls's principles would engender a sense of justice is not enough to show that they are disposed to maintain the basic structure in equilibrium on themselves. It is therefore not enough to show that those principles satisfy the antecedent of (SAG). Seeing how Rawls tries to clinch the case for the stability of his principles brings more stimulus conditions to light.

Some readers of Rawls – most notably Brian Barry – have thought that the argument from a sense of justice is all the argument Rawls needs to establish that the stability of his principles would be manifest (Barry 1995, 883). But because acting justly can be costly, it is possible that some people will find that acting on their sense of justice is something they would prefer not to do or would prefer to do only when it suits them (see Rawls 1999a, 435). If that possibility were realized, principles of justice – despite generating a sense of justice – would be thrown into disequilibrium. This possibility therefore needs to be foreclosed. And to sustain my reading of Rawls, it needs to be foreclosed because his principles advance the good of each.

Rawls forecloses the possibility with an intricate series of arguments that culminates in section 86 of *Theory*, chapter 9. We have seen that according to Rawls's account of the good, each person's good consists in the execution of her plan of life. Rawls argues in section 86 that affirming one's sense of justice belongs to the plan of each. More precisely, he supposes that each member of a well-ordered society knows that its institutions satisfy Rawls's principles and understands how she acquired her sense of justice. He then argues that '[t]he plan of life which [affirms a person's sense of justice] is his best reply to the similar plans of his associates; and being rational for anyone, it is rational for all' (Rawls 1999a, 497).

The phrase 'best reply' is interesting and revelatory because reminiscent of the game-theoretic concept of a Nash equilibrium.⁴ A Nash equilibrium is a strategy combination in which each player's strategy is his best reply to the strategies played by all of the others – a strategy combination which is such that no one can do better for herself by playing something different, given the strategies others are playing. What Rawls argues in *Theory*, section 86 is that when others 'play' plans of life that affirm their sense of justice, each person is best off affirming such a plan herself. The strategy combination in which each plays a plan of that kind is a Nash equilibrium.

The Nash equilibrium of citizens' plans should not be confused with the equilibrium institutions are in when they satisfy principles of justice over time. As we saw, a society which satisfies principles of justice is in equilibrium just in case its basic structure enduringly or lastingly satisfies those principles, regardless of why it does so. When the principles are Rawls's, the Nash equilibrium of citizens' plans helps to explain the endurance. So the Nash equilibrium of citizens' plans is not identical to the institutional equilibrium on Rawls's principles. Rather the Nash equilibrium helps bring about, and so is distinct from, the stability of the institutional equilibrium. When the Nash equilibrium obtains then, as Rawls put it later, 'no reasonable and rational person in the well-ordered society of justice as fairness is moved by rational considerations of the good not to honor what justice requires' (Rawls 1999b, 487 note 30). When no one is so moved, the institutional equilibrium on Rawls's principles will persist and persist because of citizens' supportive attitudes.

It is important that Rawls's argument to this point, even if sound, does not establish that the institutional equilibrium on his principles are stable in his sense or that his principles satisfy the condition expressed by (JAG). Since a Nash equilibrium is a combination of best replies, the claim that citizens are in such an equilibrium implies that each citizen best serves or advances her good by 'playing' a plan of life that affirms her sense of justice.

Extirpating her desire to be just, and replacing it with some other desire – such as the desire to decide case-by-case whether to follow or ignore her sense of justice – would make her worse off. But the argument that it would does not yet show that *Rawls's principles* have the dispositional property to stabilize an institutional equilibrium or that they most effectively advances citizens' good. For all I have said so far, it could be that each does better by affirming such a plan because doing so satisfies rational desires that she would have independent of Rawls's principles.

To see how Rawls could deny this and maintain that his principles stabilize an equilibrium on themselves, recall why citizens' plans are in a Nash equilibrium. They are in equilibrium because of the goods each citizen expects to realize by maintaining and acting from her sense of justice. Since Rawls's account of goodness as rationality says that the good is the satisfaction of rational desire, citizens' plans are in equilibrium because of their rational desires. The Rawls of *Theory* thinks citizens of a society well-ordered by his principles all desire to live in a social union of social unions and to express their nature as free and equal rational beings. These desires are not part of a sense of justice, but they are desires which can be satisfied only by persons with a regulative sense of justice informed by justice as fairness. It is therefore rational for each to affirm a plan that includes her sense of justice, at least when others do. Hence the Nash equilibrium. Rawls could maintain that justice as fairness brings about and stabilizes that equilibrium if he held that institutions which satisfy justice as fairness not only encourage a sense of justice, but also encourage the desires which support it.

To put this point another way, Rawls could maintain that his principles stabilize an equilibrium on themselves if he held that citizens' conceptions of the good are amenable to shaping by just institutions, so that they come to include desires which citizens think are advanced rather than hindered by Rawls's principles and by their own sense of justice, desires which are strong enough to override contrary tendencies. The Rawls of *Theory* does seem to think that however much citizens' conceptions of the good might differ elsewhere – and the differences will be great under free institutions – they will converge on the desires referred to in the last paragraph. And he seems to think that conceptions of the good are plastic, and are shaped by the institutions (Rawls 1999a, 229). Moreover, if Rawls's principles *better* stabilize an equilibrium on themselves than utilitarianism would, then conceptions of the good cannot be indefinitely plastic. Rather, Rawls's principles must encourage elements of the good that make fewer demands of our nature than utilitarianism would.

Rawls says regrettably little about how the shaping takes place, and such shaping is not guaranteed. The lack of a guarantee enables Rawls to answer Cohen's critique, but is also a source of vulnerability. I shall return to this point shortly. For now, note that Rawls thinks principles of justice are stable just in case they would stabilize a basic structure in an equilibrium on themselves if (1) they were institutionalized, (2) psychological laws of reciprocity are true of those who live under the institutions, so that those who live under those institutions (3) develop a sense of justice and (4) have conceptions of the good that (4.a) they see are advanced by those institutions, and (4.b) are shaped by those institutions so that they (4.c) include and are seen to include desires which can be satisfied only by affirming their sense of justice as regulative.

§6. Taking stock

Let us take stock. I have said that Rawls accepts:

(JAG) Principles of justice are correct only if they are the ones that would most effectively advance each citizen's good.

and that his acceptance of it dovetails naturally with his location in the social contract tradition. I have also argued that he accepts:

(SAG) If principles of justice are more likely to manifest their stability under their normally instituted conditions than the alternatives are to manifest theirs, then they would most effectively advance each citizen's good.

Rawls's acceptance of (JAG) and (SAG) shows why he says that parties in the original position would be concerned with the stability of the principles of justice they consider. For according to (SAG), the principles which are most stable thereby satisfy an important condition of correctness – the condition expressed by (JAG). The parties are interested in stability because stability is a sign that that condition is satisfied.⁵

It is a sign that parties in the original position would see in light of the general facts they are allowed to know. They would know that citizens' sense of justice, together with the Nash equilibrium, stabilizes the institutional equilibrium of a society satisfying Rawls's principles. We have seen that the presence of the first of these stabilizing devices implies that those principles advance each citizen's good more effectively than utilitarianism. We have seen that the other stabilizing device also implies that Rawls's principles advance their good, by shaping and then providing the good each citizen wishes to have advanced. And in a passage to which I shall return, Rawls says 'it is surely more probable' that this will happen under justice as fairness 'than on the utilitarian view' (Rawls 1999a, 502). Thus Rawls argues that institutions which satisfy his principles would be in an equilibrium which is more stable than an equilibrium which could be brought about by utilitarianism. This implies that his principles satisfy (SAG), and so satisfies the condition (JAG) imposes.⁶

I have explicated Rawls's treatment of stability in some detail in order to show how he can answer Cohen's critique. To recall that critique: I said that though Cohen simply claims Rawls cannot consistently say what he does say or wants to say, he is better read as posing a dilemma for Rawls. That dilemma seizes on ($\Diamond$ JNM), which says:

($\Diamond$ JNM) It is possible that the stability of the correct principles of justice is not manifest under their normally instituted conditions.

If ($\Diamond$ JNM) is false, then Rawls cannot consistently say the quite sensible things Cohen claims he cannot say. But if ($\Diamond$ JNM) is true, then Rawls needs to say why it is true. More important, he needs to say why he connects correctness with stability. For if it is possible

that the stability of the correct principles is not manifest under normal conditions, then it is very hard to see why Rawls accepts

(JS)' Principles of justice are correct only if they are more likely to manifest their stability under their normally instituted conditions than the alternatives are to manifest theirs.

and so takes relative stability to be a necessary condition of justice. Thus the dilemma: both the falsity and the truth of ($\Diamond$ JNM) lead to unacceptable consequences.

But at this point, Cohen's dilemma may not seem to call for an answer, since nothing I have said so far shows that Rawls accepts (JS)'. The conjunction of (JAG) and (SAG) – both of which Rawls accepts – does not imply it. For (SAG) says only that relative stability is a sufficient condition of the necessary condition of justice expressed by (JAG), not a necessary condition of justice itself. What Cohen needs Rawls to endorse if Rawls is to be committed to (JS)' is not (SAG), but

(AGS) If principles of justice would most effectively advance each citizen's good then they are more likely to manifest their stability under their normally instituted conditions than the alternatives are to manifest theirs.

But my interpretation does not show Rawls is committed to (AGS) and so does not show that Rawls is committed to (JS)'. And unless Rawls is committed to (JS)', there is no dilemma.

There is, however, some textual evidence that Rawls accepts (AGS).⁷ There are also philosophical reasons to think Rawls accepts it, given his other commitments. According to the commitments I have surveyed, the good of each person is given by a rational plan of life. If principles of justice would better advance each person's good so understood than alternative principles would, then they have the capacity or the disposition to secure the support of those who correctly apprehend their good and satisfy the laws of reciprocity. That means that Rawls is committed to (JS)', just as Cohen's dilemma requires.

Beginning in the next section, I shall argue that Cohen's dilemma can be avoided on Rawlsian grounds, for there are Rawlsian grounds for endorsing both ($\Diamond$ JNM) and (JS)'. That is, there are Rawlsian grounds for tying justice to stability while holding that the stability of the correct principles of justice might not be manifest under the conditions that normally obtain when those principles are instituted. I begin with the Rawlsian grounds for ($\Diamond$ JNM).

§7. Grounds for ($\Diamond$ JNM)

In §5, we saw that Rawls thinks principles of justice are stable just in case they would stabilize a basic structure in an equilibrium on themselves if (1) they were institutionalized, (2) psychological laws of reciprocity are true of those who live under the institutions, so that those who live under those institutions (3) develop a sense of justice and (4) have conceptions of the good that (4.a) they see are advanced by those institutions, and

(4.b) are shaped by those institutions so that they (4.c) include and are seen to include desires which can be satisfied only by affirming their sense of justice as regulative.

Even in a society well-ordered by Rawls's principles, these conditions may be much more difficult to maintain than the Rawls of *Theory* acknowledges. For example, Rawls stresses the importance of associations and moral exemplars in the development of a sense of justice (Rawls 1999a, 412–13). The stress seems appropriate, since the content of our sense of justice no doubt depends upon the wide variety of associations and organizations to which we belong and on the conduct and teaching of those we admire. Rawls seems to assume that these sources of moral influence will all support, or at least not contradict, the demands of justice as fairness. It may seem unlikely that a society with freedom of thought and expression could sustain the requisite agreement about justice, but here I want to raise a different worry.

If associations which are bearers of what Rawls later called 'comprehensive doctrines' are to foster a sense of justice informed by his principles, those doctrines may have to develop so that they consistent with justice as fairness. We need to know much more than Rawls tells us about how that development comes about and what political institutions may legitimately do to bring it about.

Consider marriage equality, which some religions oppose but which – I assume *arguendo* – liberal justice requires. It may be that adherents of those religions would come to accept marriage equality as it becomes widely accepted in society. But it may also be that some will accept it only if their doctrine develops to support it, and that their doctrine is more likely to develop in this way through some combination of coercion and nudges applied to churches by laws and court decisions. If liberal theory implies limits to the coercion and nudges that can legitimately be applied, the result may be limits on the extent to which doctrines can develop to support the demands of liberal justice. Those limits, in turn, may mean limits on the extent to which a sense of liberal justice can be expected to develop. At the very least, they mean that development of a liberal sense of justice is not a foregone conclusion. That is all Rawls needs to concede the difficulty of bringing about condition (3) and to endorse (◊JNM).

But suppose that concerns about condition (3) can be answered, and that citizens develop a sense of justice. Still, as I observed earlier, the Rawls of *Theory* says almost nothing about how justice as fairness brings about stimulus condition (4) and its sub-conditions. These conditions will be realized only if a critical mass of citizens in a well-ordered society affirms that following the promptings of their sense of justice would be good for them. According to *Theory*, to live in a well-ordered is to live in a social union of social unions (Rawls 1999a, 462–63) under 'arrangements that enable everyone to express his common nature' (Rawls 1999a, 417). Perhaps Rawls thinks that realizing the goods of a social union of social unions, and of the expression of one's nature, encourages the desire to continue realizing them. But a great deal would have to be said to vindicate the claim that these desires are not just encouraged, but that the encouragement is successful and that the resulting desires are strong enough to outweigh conflicting desires.

It is especially important to vindicate this claim, rather than to assume it, because Rawls's principles makes considerable demands of those who would fare better economically under a less egalitarian principles of justice. The manifestation of stability

requires that those who know they would fare better under alternative arrangements have conceptions of the good according to which the desire to treat one's sense of justice as regulative outweighs the burden of those demands. The same is true of those who believe they could fare better economically by acting unjustly under justice as fairness.

People's conceptions of the good – like their sense of justice – are influenced, not just by public institutions, but also by their educations, their families, the secondary associations to which they belong and by experiences of all kinds. Some conceptions, or conceptions with some identifiable but unidentified features, may be more amenable to shaping by basic institutions and political culture than others. Vindication of Rawls's claim would therefore require a great deal of psychological and sociological argument. Any such arguments are bound to be at best probabilistic at crucial junctures, and more likely conjectural. And so what the Rawls of *Theory* should say is that, at least for all we know about conceptions of the good and their formation, his principles can bring about the manifestation conditions of their own stability only with difficulty. And he should say that, again for all we know, his principles may not be able to bring those conditions about. The difficulty of realizing conditions (4), (4.a), (4.b), and (4.c) – like the difficulty of realizing (3) – gives the Rawls of *Theory* reason to accept (◇JNM).

The foregoing considerations also show that the Rawls of *Political Liberalism* has reason to accept (◇JNM). As is well known, Rawls came to think that *Theory*'s treatment of stability was inconsistent with his view as a whole (Rawls 1995, xviii–xix). The propositions that were inconsistent were *Theory*'s clear implication that free institutions encourage a wide diversity of conceptions of the good and its claim that citizens of a well-ordered society would all converge on the desires referred to at the end of §5, the desires to live in a social union of social unions and to express their nature. Faced with this inconsistency, Rawls dropped the second claim. Dropping it required him to develop a different account of why citizens would find their sense of justice to be good for them.

In the new account, justice as fairness was presented as a political conception of justice. Rawls then argued that citizens' diverse comprehensive doctrines would, each for its own reasons, overlap on the political conception. Adherents of each doctrine could then see that they are 'congruent with, or supportive of, or else not in conflict with, the values appropriate to the special domain of the political as specified by a political conception of justice' (Rawls 1995, 140). This brings it about that (4.a) and (4.c) are satisfied, and allows them to affirm the fit between that conception and their good that is necessary for stability. Rawls said little about how the overlap would come about, but in the case of many comprehensive doctrines it would require the sort of development of doctrine referred to by (4.b) and discussed earlier in this section. But for reasons already discussed, this development is not a guaranteed and so it is possible that justice will not be manifest.

§8. Why (JS)' and (JAG)?

Saying that justice as fairness may not be able to bring its own stimulus conditions is, of course, consistent with holding that justice as fairness is more likely to stabilize an equilibrium on itself than utilitarianism is. Indeed, saying that justice as fairness is *unlikely* to stabilize an equilibrium on itself is consistent with holding that it is more likely

to do so than utilitarianism is. In one place, Rawls seems to allow for exactly that possibility, saying that ‘however improbable the congruence of the right and the good in justice as fairness, it is surely more probable than on the utilitarian view’ (Rawls 1999a, 502). And so Rawls can grant (JNM) while holding that justice as fairness is more likely to bring about its own stimulus conditions than its chief rival, is the more stable conception of justice, and satisfies the condition of correctness imposed by:

(JS) Principles of justice are correct only if they are more likely to manifest their stability under their normally instituted conditions than the alternatives are to manifest theirs.

But why does Rawls endorse (JS)? It is possible that the stability of even the correct principles of justice will not be manifest, and Rawls does not rule out that it is unlikely to be manifest. Why, then, make relative stability – greater likelihood of manifestation – a condition of correctness?

The most obvious Rawlsian rationale for connecting justice with stability does not yield an adequate answer. That rationale draws on what Rawls says early in *Theory* about the role of justice. Principles of justice are to serve as the final standards for society’s distribution of benefits and burdens over time. It is natural to infer that the correct principles are the ones that are best able to play that role. If principles are to play that role, their stability must be manifest.⁸ But if Rawls grants that even the correct principles may be unlikely to be able to play that role – if it is improbable that the stability of even the correct principles will be manifest – then relative stability seems to be an odd test of correctness. (JS)’ still seems an odd requirement to impose.

Recall that I read Rawls as endorsing:

(SAG) If principles of justice are more likely to manifest their stability under their normally instituted conditions than the alternatives are to manifest theirs, then they would most effectively advance each citizen’s good.

and

(AGS) If principles of justice would most effectively advance each citizen’s good then they are more likely to manifest their stability under their normally instituted conditions than the alternatives are to manifest theirs.

That is, he thinks that principles are most likely to manifest stability just in case they most effectively advance each citizen’s good. This equivalence, together with:

(JAG) Principles of justice are correct only if they are the ones that would most effectively advance each citizen’s good.

gets Rawls to

(JS)' Principles of justice are correct only if they are more likely to manifest their stability under their normally instituted conditions than the alternatives are to manifest theirs.

If (JS)' is false, then Rawls would have to give up at least one of (SAG), (AGS) and (JAG). I have shown at some length why Rawls accepts (SAG) and I indicated more briefly that he accepts (AGS). That leaves (JAG). I believe Rawls does not want to give up (JS)' because he does not want to give up (JAG).

When I introduced (JAG), I said that it is a fundamental commitment of Rawls's and a consequence of what I called 'the norm of mutual benefit'. According to that norm, society is to be organized as a cooperative scheme for the benefit of its members. As I observed then, the norm is not a platitude, as is shown by the fact that it does real philosophical work against utilitarianism. Instead, it is a substantive commitment about the purpose of political society. (JAG) follows from that commitment, together with the claim that society's distributive rules – its principles of distributive justice – should be such as to advance that purpose. I have said that Rawls endorses (JS)' because if he allowed that (JS)' is false, then he would have to give up (JAG). It is now clear why he would not want to give up (JAG): because he is committed to the norm of mutual benefit.

Because (JAG) follows from the norm of mutual benefit, its importance in Rawls's theory is not exhausted by its role in grounding (JS)'. (JAG) says that a conception of justice is correct only if its institutionalization would enable a society to do what society is for. The justice of a society depends upon citizens' acting from their sense of justice. Because the sense of justice is a desire to act justly for its own sake, (JAG) does not identify an end – namely, citizens' good – that each tries to achieve by acting justly. Citizens may act justly without intending thereby to bring it about that the good of others is advanced. But by tying justice to the purpose of political society, (JAG) also gives what we might call 'the point' of a sense of justice. For it implies there is something of value that is attained when everyone has and acts from that sentiment. It thereby furnishes an answer to the question 'why is a sense of justice worth having'?

Answering this question, by identifying the point of a sense of justice, is something a theory of justice has to do. For societies can remain just over time only with a great deal of voluntary compliance. Regular compliance requires sacrifice. That is, it requires people to exercise restraint, to forego gains of various kinds that they might have secured, and to perform actions to which they might not otherwise have been inclined. They may do these things out of a sense of justice, but the standing readiness to make sacrifices for justice's sake cannot be a tendency or a habit regularly to make sacrifices that are seen as pointless. If people do not see any point to doing their duty, if they think there is nothing of value thereby secured when prudential reasoning recommends ends which justice denies, then the sense of duty will come to seem an irrational tendency or perhaps a fetish. Should that happen, the sense of justice will lose its grip.⁹ A theory of justice which fails to provide the point of justice – a point Rawls provides by endorsing (JAG) – is really just part of a theory.

If the argument of the previous paragraph is correct, and the sense of justice will lose its grip if the sentiment is regarded as pointless, then citizens must be able to see and affirm the point of justice. They will have to see and affirm that advancing each citizens' good –

relative to a suitable benchmark and as each has come to understand her good under just institutions – is something to be valued. That means their seeing and affirming this is itself among the stimulus conditions of stability that a conception of justice must bring about when institutionalized.

Bringing about this condition in the face of what may be a plethora of conflicting impulses and influences is bound to be a challenge. It is a challenge that increases in difficulty as the societies to which liberalism is addressed become more diverse and polarized. Because it is a challenge rather than a foregone conclusion, the demands of justice have the requisite independence from human inclinations. That it is a challenge is another reason that, as Cohen correctly observed, justice – including Rawlsian justice – is a fragile achievement under even the best of circumstances. The circumstances of the US and other western democracies are far from the best at the moment. That they are not is, I suspect, both a cause and a result of their failure to meet the challenge.

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Notes

1. I am grateful to Matthew Adams, Peter de Marneffe and Jonathan Quong, and to an audience at the Pontifical University of Santiago, for helpful comments on earlier drafts.
2. Thus at 1999a, 154 he says that ‘a strong point in favor of a conception of justice is that it generates its own support’.
3. I am grateful to Jonathan Quong for suggesting this problem with (JS)’.
4. This paragraph and the next two draw on three similar paragraphs in [Weithman \(2023b\)](#).
5. Elizabeth Anderson makes a similar point at her 2010, 20 where she says ‘For contractualists, the inability of principles to inspire a sense of justice is a sign that they are unreasonable’ (emphasis added).
6. As if to confirm that justice as fairness satisfies (SAG), Rawls says that it is more realistic to suppose justice as fairness is stable than utilitarianism because ‘[w]hen the principle of utility is satisfied, however, there is no such assurance that everyone benefits’ (*TJ*, p. 155). According to the argument I have attributed to Rawls, one conception better maintains the basic structure in equilibrium on itself than another does just in case the former is more likely than the latter to generate its own supportive attitudes. There is, however, another way of understanding ‘better maintains’ that would yield a different argument for the conclusion that justice as fairness is more stable than utilitarianism.

Grant something that I have made more precise in [Weithman \(2023a\)](#): that basic structures ordered by conceptions of justice occupy points in what we might call ‘justice space’. Then we can say that one conception better maintains an equilibrium on itself than another does just in case it allows fewer and briefer ‘wobbles’ of the basic structure well-ordered by it, and that those wobbles fall within a narrower radius around the conception of justice in question. Now suppose that any regime, in order to secure support, must secure the priority of basic rights and liberties. A basic structure well-ordered by justice as fairness does that but a utilitarian basic structure does not. So any regime which enjoys the support of its citizens will be somewhat close to the former

but will remain at some distance from the latter. Utilitarianism thus allows for a larger and more enduring deviation from itself than justice as fairness does, and is therefore the less stable of the two conceptions.

7. Thus when he says why the stability of justice as fairness would lead parties in the original position to accept it, Rawls says ‘Since everyone’s good is affirmed, all acquire inclinations to uphold the scheme’ [Rawls 1999a](#), 155).
8. See [Pallikkathayil \(2023\)](#) for this argument.
9. This is not to deny that people sometimes perform actions they regard as pointless, even out of a sense of duty. But it is one thing to say, as seems correct, that people will sometimes perform pointless actions dutifully. It is quite another to maintain that people will regularly do so, and still another to maintain that they would affirm that their tendency to do so belongs to their good and would try to preserve that tendency.

References

- Anderson, Elizabeth. 2010. “The Fundamental Disagreement between Luck Egalitarians and Relational Egalitarians.” *Canadian Journal of Philosophy* 36: 1–23.
- Barry, Brian. 1995. “Review: John Rawls and the Search for Stability.” *Ethics* 105: 874–915.
- Cohen, Gerald. 2008. *Rescuing Justice and Equality*. Cambridge, MA: Harvard University Press.
- Pallikkathayil, Japa. 2023. “The Stability or Fragility of Justice,” In *Rawls’s A Theory of Justice at 50*, edited by Paul Weithman, 151–166. Cambridge, UK: Cambridge University Press.
- Rawls, John. 1995. *Political Liberalism*. New York: Columbia University Press.
- Rawls, John. 1999a. *A Theory of Justice*. Cambridge, MA: Harvard University Press.
- Rawls, John. 1999b. “In *Collected Papers*,” edited by Samuel Freeman. Cambridge, MA: Harvard University Press.
- Schaefer, Alex. 2023. “Is Justice a Fixed Point?” *American Journal of Political Science* 67. no. 2: 277–290.
- Thrasher, John, and Vallier, Kevin. 2018. “Political Stability in the Open Society.” *American Journal of Political Science* 62. no. 2: 398–09.
- Weithman, Paul. 2023a. “Fixed Points and Well-Ordered Societies”, *Politics, Philosophy and Economics* 22, no. 2: 197–212.
- Weithman, Paul. 2023b. “Stability and Equilibrium in Political Liberalism”, *Philosophical Studies*. (published online November 11, 2023).